

JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

NEW HIRE CHECKLIST

Employee Name: Robert Brookins

Employee ID #:

Hire Date: 11/9/2024

1. For Accounting to do prior to New Hire starting:

- ☒ Set up Computer Profile, Windows Login
- ☒ Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- ☒ Set up Inform-ERP System
- ☒ Set up Johnstone Employee Network (JEN/JXI)
- ☒ Set up Voicemail (Extension)
- ☒ Add to Phone List
- ☒ Set up as User in Address Book in Copiers & Printers
- ☒ Set up in Johnstone University- JU Online
- ☒ Set up Johnstone Email
- ☒ Set up Building Access & Alarm Code

2. For HR to do with New Hire - complete the following items during orientation:

- ☒ Sign Offer Letter
- ☒ Application
- ☒ Sign Job Description
- ☒ New Hire Form/Employee Information Form
- ☒ Pay Rate Acknowledgement-2 copies
- ☒ W4 Tax Withholding Form
- ☒ IT-2104 Employee's Withholding Allowance Certificate
- ☒ Post-Offer Self-Identification Form
- ☒ I-9 Eligibility Form
- ☒ Direct Deposit Form
- ☒ Benefits Overview
- ☒ Receipt of Handbook
- ☒ Receipt of Non-Harassment Policy
- ☒ Receipt of Sexual Harassment Prevention Policy & Complaint Form
- ☒ Receipt of Smoking Policy
- ☒ Receipt of Confidentiality Policy
- ☒ Authorization to Deduct Expenses



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- ☒ Employee Account Information

3. HR will hand Employee during orientation:

- ☒ Employee Handbook
- ☒ Copy of Benefits Overview
- ☒ New Health Insurance Marketplace Coverage
- ☒ COBRA General Notice
- ☒ Allworx Voicemail Greetings Setup Guide
- ☒ Payroll Schedules
- ☒ Copy of Pay Rate Acknowledgement Form
- ☒ Copy of Job Description
- ☒ Copy of Offer Letter

4. HR to do Training during New Hire's orientation:

- ☒ Sexual Harassment Prevention Training

5. For HR to do on New Hire's first day after orientation is complete:

- ☒ Set up in Payroll and Time & Attendance
- ☒ Add to Org Chart
- ☒ Scan New Hire paperwork and Save to Online Employee File
- ☒ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ☒ File Form I-9 in Active Forms I-9 Folder
- ☒ File Background Check forms and information in the Background Check File
- ☒ Add Employee to Payroll File and Commission/Bonus File online

☐



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October 14, 2021

Mr. Robert Brookins
396 State Route 49
Cleveland, NY 13042

Dear Robert:

I am pleased to offer you the position of Territory Sales Manager for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your Regional Sales Manager. Your tentative start date is Tuesday, November 9, 2021.

This is a full-time, exempt position that is not eligible for overtime pay. Your compensation package includes three components: salary, commission/bonus, and a benefit program. We are offering you a starting base wage of \$2,115.38 paid biweekly. Additionally, over the next 15 months (ending January 31, 2023), we will guarantee an additional \$2,666.67/month in salary draw. Over the next 3-4 months we will review your performance and will work with you to develop a commission and bonus plan based upon several factors including gross profit. Subsequently, your commission will be compared to your draw, and you will receive the greater of the two.

Since transportation will be an integral part of your job you will be provided with a suitable company vehicle for your use professionally. A gas card will also be provided for business use only.

Lastly, upon the successful completion of 90 days of employment you will become eligible for several employment benefits as outlined on the attached Benefits Overview. **Specific to your circumstance health insurance will be made available to you on your first day of employment.**

This job offer is contingent upon the following:

- Satisfactory reference checks.
- Completion of a satisfactory background check.
- Motor vehicle check/MVR.

On your first day, you will be given an orientation by Human Resources. This orientation will include completing employment forms, reviewing fringe benefits, introduction to management and touring the premises. Please bring appropriate documentation for the completion of your new-hire forms, including proof that you are presently eligible to work in the United States for 1-9 Form purposes. Failure to provide appropriate documentation within three days of hire will result in immediate termination of employment in accordance with the terms of the Immigration Reform and Control Act.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than October 21, 2021. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Bob, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!

Sincerely,

Marco Rubino
Regional Sales Manager
315-766-2066

-Over-

Robert Brookins Offer Letter- continued

Attachments: Job Description, Benefits Overview, Driver Information Request, List of Acceptable Documents for Form I-9, Background Authorization

I have read and understood the provisions of this offer of employment, and I accept the above conditional job offer. I understand that my employment with Johnstone Supply of Central NY is considered at will, meaning that either the company or I may terminate this employment relationship at any time with or without cause or notice.

This offer shall remain open until 10/21/2021. Any acceptance postmarked after this date will be considered invalid.

Date: 10-18-21

Print Name: Robert A Brookins

Signature: Robert A Brookins

Please Print Clearly

APPLICATION FOR EMPLOYMENT

Company Name Johnstone Supply of CNY

Date 11-9-2021

Please Answer All Questions. Résumés Are Not A Substitute For A Completed Application.

We are an equal opportunity employer. Applicants are considered for positions without regard to veteran status, uniformed servicemember status, race, color, religion, sex, national origin, age, physical or mental disability, genetic information or any other category protected by applicable federal, state, or local laws.

For Rhode Island Employers Only: This Company is subject to the Workers' Compensation laws of the State of Rhode Island.*

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE.

Applicant Name Robert A Brookius Position Applied For TSM (list only one)

Telephone Number (315) 675 - 3114 Alternate/Cellular Telephone Number (315) 420 - 3026

Present Address 396 ST RT 49

Cleveland NY 13042 Street, Apartment, or Unit Number
City State Zip

How long have you lived there 33 / 9 Years/Months

Email Address (optional) Robert.Brookius@Live.com

If under the age of 18, can you produce the necessary work certificate at the time of employment? Yes ☐ No ☐

Type of employment desired? Full-time ☒ Part-time ☐ (Specify Hours) _____

Are you willing to work overtime? Yes ☒ No ☐ Date on which you can start work if hired 11-9-2021

Have you previously applied for employment with this Company? Yes ☐ No ☒

If Yes, when and where did you apply? _____

Have you ever been employed by this Company? Yes ☐ No ☒

If Yes, provide dates of employment, location and reason for separation from employment. _____

If applicable, below list any other names by which you have been known which may be necessary to allow us to confirm your work and educational record. For example, change of name, use of an assumed name, nickname, etc.

Education	School Name and Location (Address, City, State)	Course of Study or Major	Graduate? Y or N	# of Years Completed	Honors Received
High School	<u>Camden High Camden NY</u>		<u>Y</u>	<u>4</u>	<u>Regents Diploma</u>
College					
Graduate/ Professional					
Trade or Correspondence	<u>US Navy Seabees</u>	<u>Construction</u>	<u>Y</u>	<u>6</u>	

WORK EXPERIENCE

Please list the names of your present and/or previous employers in chronological order with present or most recent employer listed first. Provide information for at least the most recent ten (10) year period. Attach additional sheets if needed. If self-employed, supply firm name and business references. You may include any verifiable work performed on a volunteer basis, internships, or military service. Your failure to completely respond to each inquiry may disqualify you for consideration from employment. Do not answer "see résumé."

Employer

Employer Lowe's 1230 Erie Blvd W Retail
Name Address Rome NY Type of Business
Telephone (315) 709-3000 Dates Employed From 7/12/2012 To 10/29/2021
Job Title Project Specialist exterior Duties IN Home Sales - Remodeling
Supervisor's Name Scott Armstrong May we contact? ☒ Yes ☐ No If No, why not? _____
Reason for Leaving? LESS Hours, Career Advancement
What will this employer say was the reason your employment terminated? Personal advancement
Were you ever disciplined? If so, for what? NO
How much notice did you give when resigning? If none, explain. 10 days

Employer

Employer Leo A Kline Teal Ave Syracuse Remodeling
Name Address Type of Business
Telephone () ? Dates Employed From 5/1/1989 To 3/23/2012
Job Title Remodeler/Installer Duties installing windows/doors etc
Supervisor's Name Jeff Kline May we contact? ☐ Yes ☒ No If No, why not? OUT OF BUSINESS
Reason for Leaving? Company Closed
What will this employer say was the reason your employment terminated? Company Closed
Were you ever disciplined? If so, for what? NO
How much notice did you give when resigning? If none, explain. 0

Have you ever been terminated or asked to resign from any job? ☐ Yes ☒ No If Yes how many times? _____

Has your employment ever been terminated by mutual agreement? ☐ Yes ☒ No If Yes how many times? _____

Have you ever been given the choice to resign rather than be terminated? ☐ Yes ☒ No If Yes how many times? _____

If you answered Yes to any of the above three questions, please explain the circumstances of each occasion.

REFERENCES [Optional]

Please list the names of additional work-related references we may contact. Individuals with no prior work experience may list school or volunteer-related references.

NAME	POSITION	COMPANY	WORK RELATIONSHIP (i.e. supervisor, co-worker)	TELEPHONE
Marco Rutino	Sales	Johnstone	CO worker	315-560-7954
Allen Jones	Sales	Lowe's	CO worker	315-408-6698

Please list the names of personal references (not previous employers or relatives) who you know that we may contact.

NAME	OCCUPATION	ADDRESS	TELEPHONE	NUMBER OF YEARS KNOWN
Rich murdock	Sales	ABC supply	315-527-0769	9
Jason Tuttle	Management	NOT sure	315-794-8204	6

DRIVING INFORMATION [Optional] (Complete only if driving is an essential function of the job for which you are applying).

Do you have a current valid driver's license? ☒ Yes ☐ No If yes, License No.: 822 99583 State: NY

Expiration Date: 3/23/2028

If you do not have a driver's license for the state in which you currently reside, why not?

Has your license ever been suspended or revoked? ☐ Yes ☒ No

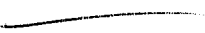
If yes, explain:

Do you have personal automobile insurance? ☐ Yes ☐ No

If no, explain:

Have you ever been denied personal automobile insurance or has it ever been terminated or suspended? ☐ Yes ☒ No If yes, explain:

Please list all moving traffic violations in the last five (5) years:

OFFENSE	DATE	LOCATION	COMMENTS
			
			

APPLICANT CERTIFICATION

I understand and agree that if driving is a requirement of the job for which I am applying, my employment and/or continued employment is contingent on possessing a valid driver's license for the state in which I reside and automobile liability insurance in an amount equal to the minimum required by the state where I reside.

I understand that the Company may now have, or may establish, a drug-free workplace or drug and/or alcohol testing program consistent with applicable federal, state, and local law. If the Company has such a program and I am offered a conditional offer of employment, I understand that if a pre-employment (post-offer) drug and/or alcohol test is positive, the employment offer may be withdrawn. I agree to work under the conditions requiring a drug-free workplace, consistent with applicable federal, state, and local law. I also understand that all employees of the location, pursuant to the Company's policy and federal, state, and local law, may be subject to urinalysis and/or blood screening or other medically recognized tests designed to detect the presence of alcohol or illegal or controlled drugs. If employed, I understand that the taking of alcohol and/or drug tests is a condition of continual employment and I agree to undergo alcohol and drug testing consistent with the Company's policies and applicable federal, state, and local law.

If employed by the Company, I understand and agree that the Company, to the extent permitted by federal, state, and local law, may exercise its right, without prior warning or notice, to conduct investigations of property (including, but not limited to, files, lockers, desks, vehicles, and computers) and, in certain circumstances, my personal property.

I understand and agree that as a condition of employment and to the extent permitted by federal, state, and local law, I may be required to sign a confidentiality, restrictive covenant, and/or conflict of interest statement.

I certify that all the information on this application, my résumé, or any supporting documents I may present during any interview is and will be complete and accurate to the best of my knowledge. I understand that any falsification, misrepresentation, or omission of any information may result in disqualification from consideration for employment or, if employed, disciplinary action, up to and including immediate dismissal.

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE. NOTHING IN THIS APPLICATION OR IN ANY DOCUMENT OR STATEMENT, WRITTEN OR ORAL, SHALL LIMIT THE RIGHT TO TERMINATE EMPLOYMENT AT-WILL. NO OFFICER, EMPLOYEE OR REPRESENTATIVE OF THE COMPANY IS AUTHORIZED TO ENTER INTO AN AGREEMENT—EXPRESS OR IMPLIED—WITH ME OR ANY APPLICANT FOR EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME UNLESS SUCH AN AGREEMENT IS IN A WRITTEN CONTRACT SIGNED BY THE PRESIDENT OF THE COMPANY. IF HIRED, I AGREE TO CONFORM TO THE RULES AND REGULATIONS OF THE COMPANY, AND I UNDERSTAND THAT THE COMPANY HAS COMPLETE DISCRETION TO MODIFY SUCH RULES AND REGULATIONS AT ANY TIME, EXCEPT THAT IT WILL NOT MODIFY ITS POLICY OF EMPLOYMENT AT-WILL.

I authorize the Company or its agents to confirm all statements contained in this application and/or résumé as it relates to the position I am seeking to the extent permitted by federal, state, or local law. I agree to complete any requisite authorization forms for the background investigation which may be permitted by federal, state and/or local law. If applicable and allowed by law, I will receive separate written notification regarding the Company's intent to obtain "consumer reports."

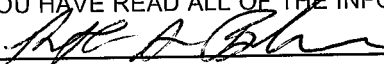
I authorize and consent to, without reservation, any party or agency contacted by this employer to furnish the above-mentioned information. I hereby release, discharge, and hold harmless, to the extent permitted by federal, state, and local law, any party delivering information to the Company or its duly authorized representative pursuant to this authorization from any liability, claims, charges, or causes of action which I may have as a result of the delivery or disclosure of the above requested information. I hereby release from liability the Company and its representative for seeking such information and all other persons, corporations, or organizations furnishing such information. Further, if hired, I authorize the company to provide truthful information concerning my employment to future employers and hold the company harmless for providing such information.

If hired by this Company, I understand that I will be required to provide genuine documentation establishing my identity and eligibility to be legally employed in the United States by this Company. I also understand this Company employs only individuals who are legally eligible to work in the United States.

THIS APPLICATION WILL BE CONSIDERED ACTIVE FOR A MAXIMUM OF SIXTY (60) DAYS. IF YOU WISH TO BE CONSIDERED FOR EMPLOYMENT AFTER THAT TIME, YOU MUST REAPPLY.

I CERTIFY THAT ALL OF THE INFORMATION THAT I HAVE PROVIDED ON THIS APPLICATION IS TRUE, ACCURATE, AND COMPLETE.

DO NOT SIGN UNTIL YOU HAVE READ ALL OF THE INFORMATION CONTAINED IN THE APPLICATION.

Applicant Signature  **Date** 11 / 09 / 2021

If the applicant is a minor, the foregoing release and consent must be signed by the applicant's parent or legal guardian. Signature by the applicant's parent or legal guardian constitutes acknowledgement by the applicant and the parent or legal guardian that the Company, to the extent permitted by federal, state, and local law, can test the applicant for illegal or controlled substances, conduct inspections of property without notice, and communicate test results to Company personnel who need to know, the applicant, and the applicant's legal guardian.

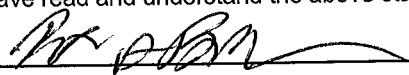
Parent/Legal Guardian

Witness

Date

Date

UNDER MARYLAND LAW, AN EMPLOYER MAY NOT REQUIRE OR DEMAND, AS A CONDITION OF EMPLOYMENT, PROSPECTIVE EMPLOYMENT, OR CONTINUED EMPLOYMENT, THAT AN INDIVIDUAL SUBMIT TO OR TAKE A LIE DETECTOR, POLYGRAPH, OR SIMILAR TEST. AN EMPLOYER WHO VIOLATES THIS LAW IS GUILTY OF A MISDEMEANOR AND SUBJECT TO A FINE NOT EXCEEDING \$100. I have read and understand the above statement.

Applicant Signature  **Date** 11 / 09 / 2021

IT IS UNLAWFUL IN MASSACHUSETTS TO REQUIRE OR ADMINISTER A LIE DETECTOR TEST AS A CONDITION OF EMPLOYMENT OR CONTINUED EMPLOYMENT. AN EMPLOYER WHO VIOLATES THIS LAW SHALL BE SUBJECT TO CRIMINAL PENALTIES AND CIVIL LIABILITY.

FOR CALIFORNIA APPLICANTS ONLY: BY CHECKING THIS BOX, I WAIVE MY RIGHT TO RECEIVE A COPY OF ANY PUBLIC RECORD OBTAINED BY THE COMPANY FOR EMPLOYMENT PURPOSES THROUGH AN INTERNAL INVESTIGATION. ☐

FEDERAL AND/OR STATE LAW MAY PROHIBIT THE USE OF LIE DETECTOR, POLYGRAPH OR SIMILAR TEST AS WELL.

THIS APPLICATION MAY NOT BE SUFFICIENT FOR ALL INDUSTRIES OR APPROPRIATE FOR USE IN ALL LOCALITIES.

*This employment application not appropriate for use by Rhode Island employers exempt from the state's Workers' Compensation laws.



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JOB DESCRIPTION

Job Title: **Territory Sales Manager**
FLSA Status: Exempt
Reports to: Regional Sales Manager

Position Summary:

Achieves sales and growth targets by developing new customer accounts and increasing sales within existing accounts.

Subordinate Summary:

This position has no formal supervisory responsibilities.

Essential Job Results and Responsibilities:

Direct Sales Results and Responsibilities

1. Contacts existing and prospective customers to uncover, clarify, or amplify needs & opportunities. Prospects for new customers and finds new quality leads.
2. Qualifies new and existing opportunities to determine revenue potential and creditworthiness.
3. Prioritizes new and existing accounts in terms of margin and profitability. Rebalances time and energy to focus on accounts with the highest growth and margin potential.
4. Positions Johnstone products and services as a strategic advantage to customers by communicating Johnstone's value proposition and business drivers.
5. Recommends products and services to customers, based on customers' business needs.
6. Effectively counters customer objections. Negotiates with customer to grow business while maintaining margin and service targets.
7. Demonstrates and explains the advantages of Johnstone in meeting customer needs. Solicits customer orders while maintaining required margin on all transactions.
8. Establishes and expands relationships with key people and decision-makers within each customer organization. Develops new customers and contacts to expand customer base.
9. Consults with clients after sales to resolve problems and to provide ongoing support.
10. Monitors market conditions, product innovations, and competitors' products, prices, and sales.
11. Proactively follows up on leads generated from within branch stores and other sources.
12. May negotiate details of contracts and payments, and prepares sales contracts and order

Job Description- Territory Sales Manager

forms.

Sales Support Results and Responsibilities

1. Develops territory and sales plans to target key customers and prioritize sales activities. Adheres to Johnstone sales process.
2. Reports activities according to established sales process. Accurately forecasts business to management.
3. Participates with management in updating territory plans and setting sales, margin and service goals.
4. Interacts cooperatively with in-store personnel to service existing accounts.
5. Maintains knowledge of new and existing products and inventory by participating in training, studying Johnstone and industry catalogs and web sites, and seeking knowledge from sales manager and experienced sales representatives.

General Results and Responsibilities

1. Adheres to all company policies, procedures and business ethics codes.
2. Represents Johnstone Supply at trade associations, events and local chapters.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is expected that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

Qualifications:

To perform this job successfully, an individual must be able to perform each essential job function satisfactorily. The requirements listed below are representative of the knowledge, skills, and/or abilities required. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Education and Experience:

Required:

- High School Diploma / GED required *OR* equivalent combination of education and experience.
- Minimum of 2 years of documented successful direct sales experience.

Preferred:

- 3 or more years of successful direct sales experience.
- Direct sales experience in the business-to-business HVAC/R or similar industry.

Job-Specific Knowledge, Skills & Abilities

- Honest, loyal and ethical, and be capable of participating in a spirited team environment with like values.
- Demonstrated tenacity in achieving sales goals.
- Demonstrated understanding and application of effective sales strategies and techniques.
- Skill in building long term customer relationships.

Job Description- Territory Sales Manager

- Ability to maintain a professional, positive, courteous, and friendly demeanor around customers, vendors and employees.
- Skill in proactively communicating (both verbal and written) to establish relationships and influence decisions.
- Excellent negotiation and objection countering skills.
- Skill in solving non-routine, unstructured problems using critical thought to identify the strengths and weaknesses of alternative solutions.
- Strong project management and multi-tasking skills.
- Knowledge of principles and methods of selling products and services.
- Knowledge of Microsoft Office, CRM software, email and internet-based research.
- Ability to manage coworker and customer interactions with tact and diplomacy.
- Self motivated
- Displays persistence, with strong drive to succeed.

Expected Work Behaviors:

- Keeps the company's best interest in mind at all times.
- Consistently works to promote company growth while maintaining ethical standards.
- Maintains a professional personal appearance.
- Strives for continuous self-improvement and for improvement of the business with respect to sales, service quality, and profitability.

Physical Demands & Work Environment:

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Physical: While performing the duties of this job, the employee is required to drive a car, stand and walk on a hard surface for the majority of the workday. The employee is regularly required to reach with hands and arms, climb and balance; stoop, kneel, crouch or crawl. The employee is frequently required to lift and carry and/or move up to 50 pounds, and occasionally required to lift up to 70 pounds. Specific vision abilities required by this job include close vision, color vision, depth perception, and ability to adjust focus. The ability to speak and hear sufficiently to provide customer service is required.

Work environment: Most work is performed at customer sites with cellular phone, car, and/or computer.

Skills Summary:

Sales Aptitude	Oral Communications
Problem Solving Skills	Organization
Written Communication Skills	Time Management
Energetic	Reading Skills

Job Description- Territory Sales Manager

Interpersonal & Telephone Skills

Computer Skills

Diplomacy

Technical Skills

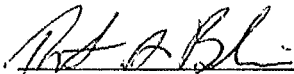
Math Aptitude

Ability to lift up to 70 pounds

Mechanical Skills

The Territory Sales Manager will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

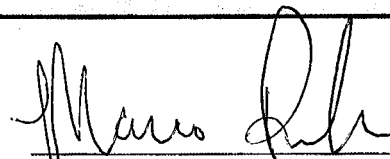
Approved by:



Incumbent

10-18-21

Date



Supervisor

11-9-21

Date



EMPLOYEE EMERGENCY CONTACT FORM

Name Robert Brookins
Department Sales (TSM)

Personal Contact Info:

Home Address 396 ST RT 49
City, State, ZIP Cleveland NY 13042
Home Telephone # 315-675-3114 Cell # 315-420-3026

Emergency Contact Info:

(1) Name Brenda Brookins Relationship WIFE
Address 396 ST RT 49 Cleveland NY
City, State, ZIP Cleveland NY 13042
Home Telephone # 315-675-3114 Cell # 315-420-6147
Work Telephone # _____ Employer _____

(2) Name Emerald Brookins Relationship Daughter
Address 402 Morey Rd
City, State, ZIP West Monroe NY
Home Telephone # 315-668-5093 Cell # 315-447-4758
Work Telephone # _____ Employer Camillus Schools

I have voluntarily provided the above contact information and authorize Johnstone Supply of CNY and its representatives to contact any of the above on my behalf in the event of an emergency.

Employee Signature [Signature] Date Nov 9th 2021



Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Exempt Employees

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

2. Notice given:

- ☒ At hiring
☐ Before a change in pay rate(s),
allowances claimed, or payday

3. Employee's pay rate(s): State if pay is

based on an hourly, salary, day rate,
piece rate, or other basis.

\$2,115.38 Salary

Employers may not pay a non-hourly rate to
a non-exempt employee in the Hospitality
Industry, except for commissioned
salespeople.

4. Allowances taken:

- ☒ None
☐ Tips _____ per hour
☐ Meals _____ per meal
☐ Lodging _____
☐ Other _____

5. Regular payday: Friday

6. Pay is:

- ☐ Weekly
☒ Bi-weekly
☐ Other: _____

7. Overtime Pay Rate:

Most workers in NYS must receive at least
1½ times their regular rate of pay for all
hours worked over 40 in a workweek, with
few exceptions. A limited number of
employees must only be paid overtime at
1½ times the minimum wage rate, or not at
all.

This employee is exempt from overtime
under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay
rate, overtime rate (if eligible), allowances,
and designated payday. I told my employer
what my primary language is.

Check one:

- ☒ I have been given this pay notice in
English because it is my primary language.
☐ My primary language is _____. I
have been given this pay notice in English
only, because the Department of Labor
does not yet offer a pay notice form in my
primary language.

Robert A Brooks

Print Employee Name

[Signature]

Employee Signature

11-9-2021

Date

Kenneth Livingston, President

Preparer Name and Title

The employee must receive a signed
copy of this form. The employer must
keep the original for 6 years.

Please note: It is unlawful for an employee
to be paid less than an employee of the
opposite sex for equal work. Employers also
may not prohibit employees from discussing
wages with their co-workers.

Employee's Withholding Certificate

OMB No. 1545-0074

2021

- **Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay.**
► **Give Form W-4 to your employer.**
► **Your withholding is subject to review by the IRS.**

Step 1: Enter Personal Information	(a) First name and middle initial Robert A	Last name Brookins	(b) Social security number 110-62-4254
	Address 396 State Route 49		► Does your name match the name on your social security card? If not, to ensure you get credit for your earnings, contact SSA at 800-772-1213 or go to www.ssa.gov .
	City or town, state, and ZIP code Cleveland NY 13042		
	(c) ☐ Single or Married filing separately ☒ Married filing jointly or Qualifying widow(er) ☐ Head of household (Check only if you're unmarried and pay more than half the costs of keeping up a home for yourself and a qualifying individual.)		

Complete Steps 2-4 ONLY if they apply to you; otherwise, skip to Step 5. See page 2 for more information on each step, who can claim exemption from withholding, when to use the estimator at www.irs.gov/W4App, and privacy.

Step 2:
Multiple Jobs or Spouse Works

Complete this step if you (1) hold more than one job at a time, or (2) are married filing jointly and your spouse also works. The correct amount of withholding depends on income earned from all of these jobs.

Do **only one** of the following.

(a) Use the estimator at www.irs.gov/W4App for most accurate withholding for this step (and Steps 3-4); **or**

(b) Use the Multiple Jobs Worksheet on page 3 and enter the result in Step 4(c) below for roughly accurate withholding; **or**

(c) If there are only two jobs total, you may check this box. Do the same on Form W-4 for the other job. This option is accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld ► ☐

TIP: To be accurate, submit a 2021 Form W-4 for all other jobs. If you (or your spouse) have self-employment income, including as an independent contractor, use the estimator.

Complete Steps 3-4(b) on Form W-4 for only ONE of these jobs. Leave those steps blank for the other jobs. (Your withholding will be most accurate if you complete Steps 3-4(b) on the Form W-4 for the highest paying job.)

Step 3: Claim Dependents	If your total income will be \$200,000 or less (\$400,000 or less if married filing jointly):		
	Multiply the number of qualifying children under age 17 by \$2,000 ► \$		
	Multiply the number of other dependents by \$500 ► \$		
	Add the amounts above and enter the total here	3	\$ 0
Step 4 (optional): Other Adjustments	(a) Other income (not from jobs). If you want tax withheld for other income you expect this year that won't have withholding, enter the amount of other income here. This may include interest, dividends, and retirement income	4(a)	\$ 0
	(b) Deductions. If you expect to claim deductions other than the standard deduction and want to reduce your withholding, use the Deductions Worksheet on page 3 and enter the result here	4(b)	\$ 0
	(c) Extra withholding. Enter any additional tax you want withheld each pay period	4(c)	\$ 0

Step 5: Sign Here	Under penalties of perjury, I declare that this certificate, to the best of my knowledge and belief, is true, correct, and complete.		
	Employee's signature (This form is not valid unless you sign it.) Robert A Brookins		Date 11-9-2021

Employers Only	Employer's name and address	First date of employment	Employer identification number (EIN)



Department of Taxation and Finance

Employee's Withholding Allowance Certificate

New York State • New York City • Yonkers

IT-2104

First name and middle initial Robert A	Last name Brookins	Your Social Security number 110-62-4254
Permanent home address (number and street or rural route) 396 State Route 49		Apartment number
City, village, or post office Cleveland	State NY	ZIP code 13042
Single or Head of household ☐ Married ☒		
Married, but withheld at higher single rate ☐		
Note: If married but legally separated, mark an X in the Single or Head of household box.		
Are you a resident of New York City? Yes ☐ No ☒		
Are you a resident of Yonkers? Yes ☐ No ☒		
Complete the worksheet on page 4 before making any entries.		
1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 19)		1 3
2 Total number of allowances for New York City (from line 31)		2
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer.		
3 New York State amount		3 0
4 New York City amount		4
5 Yonkers amount		5

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature Robert A Brookins	Date 11-9-2021
--	--------------------------

Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.**Employee: detach this page and give it to your employer; keep a copy for your records.****Employer: Keep this certificate with your records.**Mark an **X** in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):A Employee claimed more than 14 exemption allowances for NYS A ☐B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.): Are dependent health insurance benefits available for this employee? Yes ☐ No ☐If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number

Instructions**Changes effective for 2021**

Form IT-2104 has been revised for tax year 2021. The worksheet on page 4 and the charts beginning on page 5, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2021 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If the federal Form W-4 you most recently submitted to your employer was for tax year 2019 or earlier, and you did not file Form IT-2104, your employer may use the same number of allowances you claimed on your federal Form W-4. Due to differences in federal and New York State tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

For tax years 2020 or later, withholding allowances are no longer reported on federal Form W-4. Therefore, if you submit a federal Form W-4 to your

employer for tax year 2020 or later, and you do not file Form IT-2104, your employer may use zero as your number of allowances. This may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.

POST-OFFER SELF-IDENTIFICATION FORM

Name: Robert A Brooks

Date: 11-9-2021

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☒ Male ☐ Female

RACE/ETHNICITY:

Are you Hispanic or Latino? Yes ☐ No ☒

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

- | | |
|---|--|
| ☒ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | ☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino) |

If you selected "Two or More Races" please identify the race with which you primarily identify:

- | | |
|---|---|
| ☐ White (Not Hispanic or Latino) | ☐ American Indian or Alaska Native (Not Hispanic or Latino) |
| ☐ Asian (Not Hispanic or Latino) | ☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino) |
| ☐ Black or African American (Not Hispanic or Latino) | |

VETERAN STATUS: (Check all that apply)

☒ I am **not** a veteran under any of the categories below. OR I am **not** a veteran of the U.S. Armed Forces.

- ☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: _____

- ☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.
- ☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.

Employee Name: Robert A Brockus

Company Name: Johnstone Supply

EMPLOYEE DIRECT DEPOSIT AUTHORIZATION AGREEMENT

(Please Complete One Form for Each Deposit Request)

I hereby authorize and request ADP, Inc. hereinafter called ADP, to make payment of any amounts owing to me by initiating credit entries to my account indicated below in the bank named below, hereinafter called BANK, and I authorize and request BANK to accept any credit entries initiated by ADP to such account and to credit the same to such account without responsibility for the correctness thereof.

I authorize and request ADP to effect repayment to ADP for amounts owed it because of a prior erroneous credit initiated to my account.

I further understand that funds will be posted to my account no earlier than check date and that I will not draw funds against my account until I have confirmed that expected funds have been posted to my account.

It is understood that this agreement may be terminated by me at any time by written notification to ADP or BANK. Any such notification to ADP shall be effective only with respect to entries initiated by ADP after receipt of such notification and a reasonable opportunity to act on it. Any such notification to BANK shall be effective only with respect to entries credited to my account by BANK after receipt of such notification and a reasonable time to act on it.

I recognize, acknowledge and accept this service is being provided for my convenience. As such, I agree to hold ADP, their agents, each participating bank and NACHA harmless from any claim incident to the operation of this plan, arising from any act or omission by ADP, their agents and their employees, including without limitation any claim based on alleged loss as a result of non-credit of any deposit, and any claim which may be made by any depositor as a result of the rejection of any of his/her debits because of insufficient funds arising from the failure to credit deposits to his/her account.

ATTACH VOIDED CHECK OR BANK LETTER AS PROOF OF ACCOUNT NUMBER AND ROUTING TRANSIT NUMBER

In the absence of a voided check or bank letter, I attest that the information below is accurate and reliable.

Routing #: 02200046 Account #: 8620034804

Account Type: (Select Only One)

☒ Checking

☐ Savings

☐ Checking (HSA) Single

☐ Checking (HSA) Family

Deposit Options: (Select Only One)

☒ Deposit ENTIRE Net Pay Amount Balance

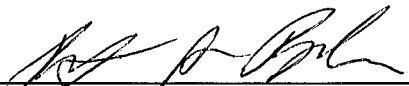
☐ Deposit \$ _____ of Net Pay Each Pay Period

☐ Deposit _____ % of Net Pay Each Pay Period

☐ Cancel Direct Deposit

For virtual delivery of pay stubs with Net Direct Deposit:

Email address: Brockus 34@LVE.com

Employee Signature:  Date: 11-9-2021

(Please Complete One Form for Each Deposit Request)

Employee Name: Robert A Brooks

Company Name: Johnstone Supply

EMPLOYEE DIRECT DEPOSIT AUTHORIZATION AGREEMENT

(Please Complete One Form for Each Deposit Request)

I hereby authorize and request ADP, Inc. hereinafter called ADP, to make payment of any amounts owing to me by initiating credit entries to my account indicated below in the bank named below, hereinafter called BANK, and I authorize and request BANK to accept any credit entries initiated by ADP to such account and to credit the same to such account without responsibility for the correctness thereof.

I authorize and request ADP to effect repayment to ADP for amounts owed it because of a prior erroneous credit initiated to my account.

I further understand that funds will be posted to my account no earlier than check date and that I will not draw funds against my account until I have confirmed that expected funds have been posted to my account.

It is understood that this agreement may be terminated by me at any time by written notification to ADP or BANK. Any such notification to ADP shall be effective only with respect to entries initiated by ADP after receipt of such notification and a reasonable opportunity to act on it. Any such notification to BANK shall be effective only with respect to entries credited to my account by BANK after receipt of such notification and a reasonable time to act on it.

I recognize, acknowledge and accept this service is being provided for my convenience. As such, I agree to hold ADP, their agents, each participating bank and NACHA harmless from any claim incident to the operation of this plan, arising from any act or omission by ADP, their agents and their employees, including without limitation any claim based on alleged loss as a result of non-credit of any deposit, and any claim which may be made by any depositor as a result of the rejection of any of his/her debits because of insufficient funds arising from the failure to credit deposits to his/her account.

ATTACH VOIDED CHECK OR BANK LETTER AS PROOF OF ACCOUNT NUMBER AND ROUTING TRANSIT NUMBER

In the absence of a voided check or bank letter, I attest that the information below is accurate and reliable.

Routing #: 021303618 Account #: 7008553100

Account Type: (Select Only One)

☒ Checking

☐ Savings

☐ Checking (HSA) Single

☐ Checking (HSA) Family

Deposit Options: (Select Only One)

150% Deposit ENTIRE Net Pay Amount

☐ Deposit \$_____ of Net Pay Each Pay Period

☐ Deposit _____% of Net Pay Each Pay Period

☐ Cancel Direct Deposit

For virtual delivery of pay stubs with Net Direct Deposit:

Email address: Brooks34@live.com

Employee Signature: Robert A Brooks Date: 11-9-2021

(Please Complete One Form for Each Deposit Request)



PTO @ 5 Years	Additional 4 days of PTO in recognition of your years of service	N/A	Four (4) additional days of PTO eligible after five (5) years of service												
NY Paid Sick Leave	40 hours of Paid Sick Leave annually	N/A	Accrual of one (1) hour of Paid Sick Leave for every thirty (30) hours worked												
Tuition Reimbursement†	Company will pay up to 100% of tuition for job-related courses subject to prior approval	Any portion over company contribution.	One (1) year												
Savings and Investment Plan	401K defined contribution plan Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule: <table><tr><th>Employee Contribution</th><th>Employer Match</th></tr><tr><td>1%</td><td>1%</td></tr><tr><td>2%</td><td>2%</td></tr><tr><td>3%</td><td>3%</td></tr><tr><td>4%</td><td>3.5%</td></tr><tr><td>5%</td><td>4%</td></tr></table>	Employee Contribution	Employer Match	1%	1%	2%	2%	3%	3%	4%	3.5%	5%	4%	Deferral of up to 25% of annual gross wages but not to exceed \$19,500 Additional \$6,500 catch-up contribution for employees aged 50 and over Pre-tax and after-tax (Roth) programs available.	One (1) year, over 21 years of age, and works more than 1000 hours per year
Employee Contribution	Employer Match														
1%	1%														
2%	2%														
3%	3%														
4%	3.5%														
5%	4%														

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

[†] Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will

I have received a copy of this document.

Rochester
Syracuse
Lyons

Employee Signature

Name of Employee (please print)

Date

Robert A Brooks
Robert A Brooks
10-18-2021

Acknowledgment of Receipt and Review

By signing below, I acknowledge that I have received a copy of Johnstone Supply of Central NY's Employee Handbook (handbook) and that I have read it, understand it, and agree to comply with it. I understand that JSCNY has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in the handbook at any time with or without notice. No statement or representation by a supervisor, supervisor, or any other employee, whether oral or written, can supplement or modify this handbook. Changes can only be made if approved in writing by the President of JSCNY. I also understand that any delay or failure by JSCNY to enforce any rule, regulation, or procedure contained in the handbook does not constitute a waiver on behalf of JSCNY or effect the right of JSCNY to enforce such rule, regulation, or procedure in the future.

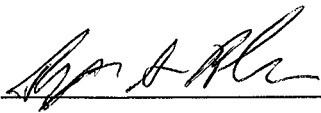
I understand that neither this handbook nor any other communication by a management representative or other, whether oral or written, is intended in any way to create a contract of employment. I further understand that, unless I have a written employment agreement signed by an authorized JSCNY representative, I am employed "at-will" (to the extent permitted by law) and this handbook does not modify my "at-will" employment status.

If I am covered by a written employment agreement signed by the President or a collective-bargaining agreement that conflicts with the terms of this handbook, I understand that the terms of the employment agreement or collective-bargaining agreement will control.

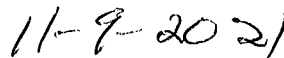
This handbook is not intended to preclude or dissuade employees from engaging in legally protected activities under the National Labor Relations Act (NLRA).

This handbook supersedes any previous handbook or policy statements, whether written or oral, issued by Johnstone Supply of Central NY.

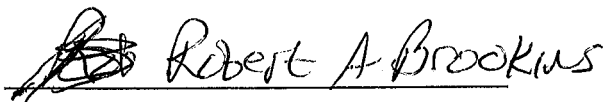
If I have any questions about the content or interpretation of this handbook, I will contact my supervisor.



Signature



Date



Print Name

Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

Employee's Printed Name: Robert A Brookins

Employee's Signature: *Robert A Brookins*

Position: TSM Sales

Date: 11-9-2021

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.



Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

Sexual Harassment Prevention Policy

example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: Robert A Brooks

Print Name: Robert A Brooks

Date: 11-9-2021



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Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:



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eMail: store141@johnstonesupply.com

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Order on-line at www.JohnstoneSupply.com/141

Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.

Robert A Brooks

Employee Name

[Signature]

Employee Signature

11-9-2021

Date



JOHNSTONE SUPPLY

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Toll Free: (800) 724-8806
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eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

EMPLOYEE CONFIDENTIALITY AGREEMENT

As a Member of **JOHNSTONE SUPPLY, Inc.** (the "Cooperative"), **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, is bound by the terms of the Bylaws of the Cooperative, and Patronage Agreement in place between our company and the Cooperative. Under these Bylaws and Patronage Agreement, we are prohibited from discussing, indicating, or disclosing all correspondences, documents, price information and other materials furnished to us by the Cooperative (other than those sales materials designated by the Cooperative for our customers) ("Confidential Information"). For example, we cannot discuss with or disclose to customers or vendors the costs for which we obtain products from the Cooperative or our vendors, or the terms of the specific programs we have with the Cooperative or these vendors. Such disclosure is grounds for termination of our Membership with the Cooperative and may make us liable for any damages as a result of a breach of confidentiality.

As employees of **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**, we must conduct ourselves accordingly to protect the security and confidentiality of all such Confidential Information. Any breach of confidentiality by an employee is grounds for termination in accordance with company procedures. Following are the rules of conduct regarding confidentiality:

1. Never discuss our costs for products with anyone outside the company. If you are asked, merely say, "I don't know".
2. Never leave any publications, letters, or written material that discloses our costs, terms, or other Confidential Information anywhere other than in a secure place on the business premises.
3. No copies, electronic or paper, are to be made of any Confidential Information under any circumstances.
4. Never disclose quantities of merchandise that we purchase.
5. No employee is to accept any gifts, gratuities, or other incentives from any vendor, at any time.

Upon termination of employment, employees must return all documentation developed or acquired in the course of employment, including all copies of Confidential Information. This includes cost and program information from vendors, mailing lists, customer lists, accounting data, or any other material that has been deemed confidential.

I understand and agree to the terms of the confidentiality policy of **The KL Group, Inc.**, doing business as **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]**.

Employee

11-9-2021

Date

President, The KL Group, Inc.

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
T: (585) 482-8000 • F: (585) 482-6000
E: ROCSales@JohnstoneHVAC-NY.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
T: (315) 479-8800 • F: (315) 479-8600
E: SYRSales@JohnstoneHVAC-NY.com

Order on-line at www.JohnstoneSupply.com/store141

AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the landed cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only. Immediate family include spouses, domestic partners, children, parents, brothers, sisters, nieces, nephews, grandparents, grandparents-in-law, parents-in-law, brothers-in-law, sisters-in-law, sons-in-law, daughters-in-law, stepparents, stepchildren, and stepparents-in-law.

In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.

Employee

11-9-2021

Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

EMPLOYEE ACCOUNT APPLICATION

Employee Name: Robert A Brooks
Address: 396 State Route 49
Address 2: _____
City/ST/Zip: Cleveland NY 13042
County: Oneida
Phone: 315-675-3114 Fax #: _____
Cell #: 315-420-3026 Other #: _____
Email Address: Robert.Brooks@live.com
I, Robert A Brooks SS# 110-62-4254
OR Driver's License # _____

I hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Employee and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Employee, whenever the above named Employee fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

Signed: [Signature]
Date: 11-9-2021

"National Supplier to the Service Industry Since 1953"



Cell Phone Use & Texting

Never text while driving. It can wait!

Make our roads safer and save lives. Be smart and familiarize yourself with the special "Texting Zone" locations along the New York State Thruway and State Highways.

Under New York State law you cannot use a hand-held mobile telephone or portable electronic device while you drive. Illegal activity includes holding a portable electronic device and

- talking on a handheld mobile telephone
- composing, sending, reading, accessing, browsing, transmitting, saving, or retrieving electronic data such as e-mail, text messages, or webpages
- viewing, taking, or transmitting images
- playing games

If you use a portable electronic device while you drive (except to call 911 or to contact medical, fire or police personnel about an emergency), you can receive a traffic ticket and be subject to a fine and a surcharge.

Conviction of a cell phone use, portable electronic device use or a texting violation will also result in points being added to your DMV driving record. If you receive 11 points in an 18-month period, your driver license may be suspended. To learn more, see [About the NY State Driver Point System](#).

Restrictions for Motor Carriers and Commercial Vehicle Drivers

- a motor carrier must not allow or require their drivers to use cell phones or texting devices while driving
- a mobile telephone used by a person who operates a commercial motor vehicle shall not be deemed a "hands-free mobile telephone" when the driver presses more than a single button to dial or answer the phone
- a commercial vehicle driver is not allowed to make a phone call or use a texting device while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays
- a commercial vehicle driver who holds a mobile telephone to, or in the immediate proximity of, his or her ear while the vehicle is temporarily stationary because of traffic, a traffic control



Cell Phone Use & Texting

- device, or other momentary delays is also presumed to be engaged in a call
- a commercial vehicle driver who holds a portable electronic device in a conspicuous manner while the vehicle is temporarily stationary because of traffic, a traffic control device, or other momentary delays is presumed to be using the device.

Sign: Pat A. Bm.

Date: 11-9-2021



Distracted Driving

The Number One Contributing Factor to Motor Vehicle Crashes in New York State

According to a study conducted by the National Highway Traffic Safety Administration (NHTSA), driver inattention is defined as one of the following:

- Driver engagement in secondary tasks
- Driver drowsiness
- Driving-related inattention to the forward roadway
- Non-specific eye glance away from the forward roadway

In recent years, the most frequent form of distraction while driving has been due to cell phone use and texting. Almost 80% of crashes and 65% of near crashes in this study involved the driver looking away from the forward roadway just prior to the crash:

- Looking away for two or more seconds will double the risk of a crash or near crash.
- Driver inattention due to drowsiness will increase the risk of a crash or near crash by at least four times.
- A driver who is engaged in a secondary task while driving also increases their risk factor.
- The following actions: talking, listening or dialing a hand-held device; inserting or retrieving a compact disc; operating a PDA; reading, applying makeup or eating will increase the driver risk factor of a crash or near crash by two to three times.

Sign: RF A Blum

Date: 11-9-2021



Safe Driving Practices for Employees

You are your employer's most valuable asset! The way that you drive says everything about you and your company. Make a positive statement by following these work-related safe driving practices.

Stay Safe

- Always use a seat belt – driver and passenger(s).
- Be well-rested before driving.
- Avoid taking medications that make you drowsy.
- Set a realistic goal for the number of miles that you can drive safely each day.
- If you are impaired by alcohol or any drug, do not drive.

Stay Focused

- Driving requires your full attention. Avoid distractions, such as adjusting the radio or other controls, eating or drinking, and talking on the phone.
- Continually search the roadway to be alert to situations requiring quick action.
- Stop about every two hours for a break.
- Get out of the vehicle to stretch, take a walk, and get refreshed.

Avoid Aggressive Driving

- Keep your cool in traffic!
- Be patient and courteous to other drivers.
- Do not take other drivers' actions personally.
- Reduce your stress by planning your route ahead of time (bring the maps and directions), allowing plenty of travel time, and avoiding crowded roadways and busy driving times.

Sign: Prof. A. Blum

Date: 11-9-2021



Car Emergency Kit "Must Haves"

- Roadside flares/glowsticks (4, check out these reusable LED flares)
- Spare tire and jack
- First aid supplies kit
- Bottled water (2-3 gal.)
- Car fire extinguisher (ABC type) [Read our article on how important a car fire extinguisher can be here]
- Pen and paper

Sign: Pat A. B. L.

Date: 11-9-2021



Company Vehicle Safety & Usage Policy Agreement

Employee Name: Robert A Brooks Driver's License Number: 822 979 887

Location: Syracuse Car License Plate Number: _____

Johnstone Supply of CNY provides vehicles for business use to allow employees to drive on company-designated business according to the guidelines below. The company retains the right to amend or terminate this policy at any time. The term "vehicle," as used in these guidelines, includes, but is not limited to, cars, trucks, and vans.

- Employees may not drive any business vehicles without prior approval of their manager. Prior to approving a driver and periodically thereafter, managers/HR must check the employee's driving record. Employees approved to drive on company business are required to inform their manager of any changes that may affect either their legal or physical ability to drive or their continued insurability.
- Employees holding jobs requiring regular driving for business as an essential job function must, as a condition of employment, be able to meet the driver approval standards of this policy always. Maintain a valid driver's license and remain fully insurable. Wear a seat belt and require passengers to wear their seat belts.
- Employees who drive a vehicle on company business must, in addition to meeting the approval requirements above, exercise due diligence to drive safely and to maintain the security of the vehicle and its contents. Use of handheld cell phones (including texting) while behind the wheel of a moving vehicle being used on company business is **strictly prohibited**. Employees are responsible for any driving infractions or fines because of their driving. Operate the vehicle in a safe, defensive manner, and obey all traffic laws.
- Nonemployees and nonbusiness passengers (i.e., family and friends) are prohibited from riding in company vehicles.
- Employees must report any accident, theft or malicious damage involving a company vehicle to their manager and the Human Resources Department, regardless of the extent of damage or lack of injuries. Such reports must be made as soon as possible but no later than 48 hours after the incident. Employees are expected to cooperate fully with authorities in the event of an accident. However, employees should make no voluntary statement other than in reply to questions of investigating officers.
- Employees who are on call on a 24-hour basis may be allowed to take a company vehicle home so they can respond as soon as possible. Such employees need to provide a written acknowledgment that they fully understand that the vehicle is used only as



Company Vehicle Safety & Usage Policy Agreement

part of emergency response and not for personal use.

- Employees are not permitted, under any circumstances, to operate a company vehicle or a personal vehicle for company business when any physical or mental impairment causes the employee to be unable to drive safely. Additionally, employees shall not operate any company vehicle at any time or operate any personal vehicle while on company business while using or consuming alcohol, illegal drugs or prescription medications that may affect their ability to drive. These prohibitions include circumstances in which the employee is temporarily unable to operate a vehicle safely or legally because of impairment, illness, medication, or intoxication.
- Employees will not alter the vehicle unless authorized by Johnstone Supply of CNY management. Examples include:
 - A. Installation of stereos, amplifiers, radar detectors
 - B. Installation of trailer hitches for personal use
 - C. Aftermarket accessories such as bug deflectors, window tinting, running boards and visors
 - D. Personalized or vanity license plates

Operating expenses and reimbursement

All purchase of routine maintenance such as oil change and tire repair costs associated with using the vehicle for work are the responsibility of the employee. See Personal Maintenance Log for complete list.

Johnstone Supply of CNY will reimburse the employee for parking, and toll costs, unless you are qualified for a company provided EZ-Pass, associated with work-related vehicle use.

The employee will submit a mileage expense report, unless you are qualified for a company provided gas card, and Johnstone Supply of CNY will reimburse for work-related use at a rate of \$0.55 per mile for normal highway use.

Johnstone Supply of CNY reserves the right to withdraw this privilege at any time.

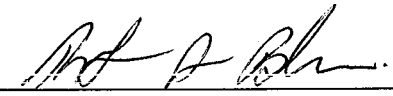
I, Robert A. Brooks have read and understand the *Vehicle Safety & Usage Policy Agreement* established by Johnstone Supply of CNY. I agree to abide by the provisions of this policy. I understand that violation of this policy will result in disciplinary action, up to and including termination of employment.



Company Vehicle Safety & Usage Policy Agreement

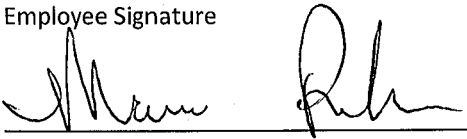
Signatures

I have read and understand the terms and conditions of this policy and agree to comply with them.



Employee Signature

11-9-2021
Date



Manager Signature
on behalf of Johnstone Supply of CNY

11-9-21
Date

Attachments: Safe Driving Practices, Cell Phone Usage & Texting While Driving & Distracted Driving, Vehicle Emergency Kit List, Report of Motor Vehicle Accident, Expense Report, Personal Reimbursement Form, Personal Vehicle Maintenance Log